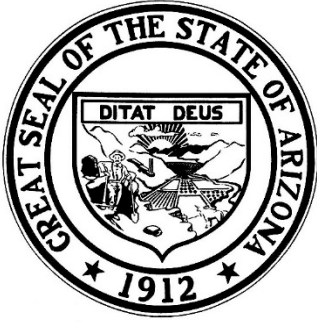




Bill Number: H.B. 2916

Petersen Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Prohibits an agency without statutory authority to require a fingerprint clearance card from requiring a person to obtain a fingerprint clearance card as a condition of licensure, certification, registration or employment.
2. Allows a person who is required to obtain a valid fingerprint clearance card, for positions that are pending approval for a federal criminal records check, to be granted a temporary work authorization while the person's application is being processed if all other requirements for work authorization, licensure, registration or certification are met.
3. Specifies that a person who is granted a temporary work authorization is authorized to work while their fingerprint clearance card application is being processed if the person:
 - a) provides the relevant agency with documentation showing that the person's application is pending within the Department of Public Safety (DPS); and
 - b) certifies that they meet all other prescribed conditions, including that the person is not awaiting trial on, convicted of and has not admitted in open court to committing any of the prescribed criminal offenses that would preclude the person from obtaining a valid fingerprint clearance card.
4. Requires DPS to notify the relevant agency if DPS denies the issuance of a fingerprint clearance card.
5. Specifies that a temporary work authorization expires if DPS denies the fingerprint clearance card.
6. Outlines actions that a relevant agency may perform relating to the outlined temporary work authorization requirements, including that the agency may deny a temporary work authorization if the agency has verifiable information that the person is precluded from receiving a fingerprint clearance card as prescribed.
7. Adds a delayed effective date of January 1, 2027, to the requirement that instructors employed or contracted with traffic survival schools provide the Arizona Department of Transportation with a valid fingerprint clearance card.

Amendment explanation prepared by Kaytie Sherman

4/13/2026

PETERSEN FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2916
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-3413, Arizona Revised Statutes, is amended to
3 read:

4 28-3413. License for schools; requirements; fingerprint
5 clearance card

6 A. A person may not act as a traffic survival school unless the
7 person applies for and obtains from the director a license in the manner
8 and form prescribed by the director.

9 B. Rules adopted by the director shall state the requirements for a
10 school license, including:

11 1. Requirements concerning location, equipment, courses of
12 instruction, instructors, previous records of the school and instructors,
13 insurance in an amount and with provisions that the director deems
14 necessary to protect adequately the interests of the public and other
15 matters prescribed by the director.

16 2. A requirement that traffic survival school courses of
17 instruction must:

18 (a) Consist of at least eight hours of instruction and include
19 information relating to aggressive driving as provided by section 28-695.

20 (b) Be offered and completed in person and may not be offered or
21 completed online unless the governor declares a state of emergency. The
22 department may grant a person who enrolls in a traffic survival school a
23 onetime waiver of the in-person requirement if the person demonstrates to
24 the department that completing the course in person would impose a
25 substantial burden on the person.

26 C. Each applicant who owns twenty percent or more of an entity and
27 each partner or stockholder who owns twenty percent or more of an entity
28 and who seeks licensure pursuant to this article AND EACH INSTRUCTOR WHO
29 IS EMPLOYED BY OR UNDER CONTRACT WITH A TRAFFIC SURVIVAL SCHOOL shall

1 provide the department or a contracted private entity of the department
2 pursuant to section 28-3411 with a valid fingerprint clearance card issued
3 pursuant to section 41-1758.03.

4 <<Sec. 2. Title 41, chapter 12, article 3.1, Arizona Revised
5 Statutes, is amended by adding section 41-1758.09, to read:

6 41-1758.09. Fingerprint clearance cards; authority;
7 prohibition; application processing;
8 employment; definition

9 [A. AN AGENCY IN THIS STATE WITHOUT STATUTORY AUTHORITY TO REQUIRE
10 A FINGERPRINT CLEARANCE CARD MAY NOT REQUIRE A PERSON TO OBTAIN A
11 FINGERPRINT CLEARANCE CARD AS A CONDITION OF LICENSURE, CERTIFICATION,
12 REGISTRATION OR EMPLOYMENT.

13 B. NOTWITHSTANDING ANY OTHER LAW, FOR OCCUPATIONS AND POSITIONS
14 THAT ARE PENDING APPROVAL FOR A FEDERAL CRIMINAL RECORDS CHECK PURSUANT TO
15 SECTION 41-1750 AND PUBLIC LAW 92-544, A PERSON WHO IS REQUIRED TO OBTAIN
16 AND POSSESS A VALID FINGERPRINT CLEARANCE CARD MAY BE GRANTED A TEMPORARY
17 WORK AUTHORIZATION BY THE RELEVANT AGENCY WHILE THE PERSON'S FINGERPRINT
18 CLEARANCE CARD APPLICATION IS BEING PROCESSED IF ALL OTHER REQUIREMENTS
19 FOR THE WORK AUTHORIZATION, LICENSURE, REGISTRATION OR CERTIFICATION ARE
20 MET.

21 C. A PERSON WHO IS GRANTED A TEMPORARY WORK AUTHORIZATION PURSUANT
22 TO SUBSECTION B OF THIS SECTION IS AUTHORIZED TO WORK WHILE THE PERSON'S
23 FINGERPRINT CLEARANCE CARD APPLICATION IS BEING PROCESSED IF THE PERSON
24 DOES ALL OF THE FOLLOWING:

25 1. PROVIDES DOCUMENTATION TO THE RELEVANT AGENCY THAT SHOWS THE
26 PERSON'S APPLICATION FOR A FINGERPRINT CLEARANCE CARD IS PENDING WITHIN
27 THE DEPARTMENT.

28 2. CERTIFIES ON FORMS THAT ARE PROVIDED BY THE RELEVANT AGENCY AND
29 THAT ARE NOTARIZED THAT THE PERSON MEETS THE FOLLOWING CONDITIONS:

30 (a) IS NOT AWAITING TRIAL ON AND HAS NEVER BEEN CONVICTED OF OR
31 ADMITTED IN OPEN COURT OR PURSUANT TO A PLEA AGREEMENT TO COMMITTING ANY
32 OF THE CRIMINAL OFFENSES LISTED IN SECTION 41-1758.03, SUBSECTION B OR C
33 OR SECTION 41-1758.07, SUBSECTION B OR C, AS APPLICABLE, IN THIS STATE OR
34 SIMILAR OFFENSES IN ANOTHER STATE OR JURISDICTION.

35 (b) IS NOT SUBJECT TO REGISTRATION AS A SEX OFFENDER IN THIS STATE
36 OR ANY OTHER JURISDICTION.

37 D. THE TEMPORARY WORK AUTHORIZATION PURSUANT TO SUBSECTION B OF
38 THIS SECTION EXPIRES IF THE DEPARTMENT DENIES THE ISSUANCE OF A
39 FINGERPRINT CLEARANCE CARD, AND THE DEPARTMENT SHALL NOTIFY THE RELEVANT
40 AGENCY OF THE DENIAL.

41 E. THE RELEVANT AGENCY MAY DO ANY OF THE FOLLOWING:

42 1. ADOPT ANY POLICIES AND PROCEDURES NECESSARY TO IMPLEMENT THIS
43 SECTION.

44 2. CONDUCT A THIRD-PARTY BACKGROUND CHECK OF THE PERSON.

45 3. DENY THE TEMPORARY WORK AUTHORIZATION IF THE RELEVANT AGENCY HAS
46 VERIFIABLE INFORMATION THAT THE PERSON IS AWAITING TRIAL ON OR HAS BEEN
47 CONVICTED OF OR ADMITTED IN OPEN COURT OR PURSUANT TO A PLEA AGREEMENT TO

1 COMMITTING ANY OF THE OFFENSES DESCRIBED IN SUBSECTION C, PARAGRAPH 2,
2 SUBDIVISION (a) OF THIS SECTION OR IS SUBJECT TO REGISTRATION AS A SEX
3 OFFENDER IN THIS STATE OR ANY OTHER JURISDICTION.
4 4. TAKE APPROPRIATE DISCIPLINARY ACTION AGAINST A PERSON WHO
5 MISREPRESENTS ANY OF THE INFORMATION REQUIRED PURSUANT TO SUBSECTION C OF
6 THIS SECTION.
7 F. FOR THE PURPOSES OF THIS SECTION, "AGENCY" INCLUDES A BOARD OR
8 COMMISSION.]>>
9 <<Sec. 3. Effective date
10 [Section 28-3413, Arizona Revised Statutes, as amended by this act,
11 is effective from and after December 31, 2026.]>>

12 Enroll and engross to conform
13 Amend title to conform

WARREN PETERSEN

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